

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Stavros Panagouloupoulos	Team: Team # 5	CCRB Case #: 200509093	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 08/05/2005 2:20 AM	Location of Incident: Fulton Street and Patchen Avenue	18 Mo. SOL 2/5/2007	Precinct: 81		
Date/Time CV Reported Mon, 08/08/2005 3:33 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 08/08/2005 3:33 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT David Courtien	01118	906016	077 PCT
2. POM Edgar Bourdon	30988	903075	077 PCT
3. POM Matthew Granahan	26635	926899	077 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Joseph Collora	31165	903648	077 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT David Courtien	Abuse: Sergeant David Courtien stopped the car in which § 87(2)(b) § 87(2)(b) § 87(2)(b) was an occupant.	A . Unsubstantiated
B . POM Matthew Granahan	Abuse: Officer Matthew Granahan frisked § 87(2)(b) § 87(2)(b) § 87(2)(b)	B . Unsubstantiated
C . SGT David Courtien	Abuse: Sergeant David Courtien searched the car in which § 87(2)(b) § 87(2)(b) § 87(2)(b) was an occupant.	C . Unsubstantiated
D . POM Edgar Bourdon	Abuse: Officer Edgar Bourdon searched the car in which § 87(2)(b) § 87(2)(b) § 87(2)(b) was an occupant.	D . Unsubstantiated

Synopsis

§ 87(2)(b) called the CCRB on August 8th, 2005 to file a complaint on behalf of his brother, § 87(2)(b) § 87(2)(b) § 87(2)(b) regarding an incident that his brother had described to him (encl.5a-b). § 87(2)(b) § 87(2)(b) § 87(2)(b) stated that on August 5th, 2005 at 2:20 AM he was parked next to a fire hydrant in front of a building near the corner of Fulton Street and Patchen Avenue in Brooklyn, waiting for his girlfriend. Sergeant David Courtien, Officer Edgar Bourdon, Officer Matthew Granahan, and Officer Joseph Collora, who had pulled up behind him in a black unmarked Crown Victoria sedan, then approached him. Sergeant Courtien approached § 87(2)(b) § 87(2)(b) § 87(2)(b) and asked for his information, and after getting it, asked him to step out of his vehicle (Allegation A). Once § 87(2)(b) § 87(2)(b) § 87(2)(b) had exited his vehicle, Officer Granahan frisked him (Allegation B), and then brought him to the back of his vehicle. There he was made to sit on the bumper facing away from his vehicle while Officer Bourdon and Sergeant Courtien searched his vehicle (Allegations C and D).

§ 87(2)(g) § 87(2)(g) The only description of the incident comes from § 87(2)(b) § 87(2)(b) § 87(2)(b) The officers, when interviewed, could not recall the incident. There are no other witnesses or any evidence that could corroborate § 87(2)(b) § 87(2)(b) § 87(2)(b) s testimony. § 87(2)(g) § 87(2)(g) It is recommended that Allegations A, B, C, and D be closed as unsubstantiated.

Summary of Complaint

§ 87(2)(b) § 87(2)(b) § 87(2)(b) was interviewed at the CCRB on October 24th, 2005(encl.6a-j).

When § 87(2)(b) § 87(2)(b) § 87(2)(b) provided his sworn statement to the CCRB, he was not able to provide any names for the officers he dealt with. He was able to provide descriptions of the officers. § 87(2)(b) § 87(2)(b) § 87(2)(b) described the officer identified as Sergeant Courtien as being a white male with black hair, close to 40 years old, about 5'10 with a regular build, and about 170 lbs. Sergeant Courtien is a white male with dark brown hair, about 5'11, § 87(2)(b) § 87(2)(b), and 210 lbs. § 87(2)(b) § 87(2)(b) § 87(2)(b) described the officer identified as Officer Collora as a white male with a potbelly and black hair who appeared to be the oldest of the four officers. Officer Collora is a 260 lb. heavyset white male officer with dark brown hair, about 5'11, § 87(2)(b) § 87(2)(b) § 87(2)(b) described the officer identified as Officer Granahan as being a white male officer who was the tallest out of the four officers present during the incident. Officer Granahan is a white male who at 6'0 is the tallest officer in his unit. § 87(2)(b) § 87(2)(b) § 87(2)(b) described the officer identified as Officer Bourdon as a white male. Officer Bourdon is a light skinned Hispanic male. The officers' names have been inserted into § 87(2)(b) § 87(2)(b) § 87(2)(b) s narrative as appropriate.

§ 87(2)(b) § 87(2)(b) § 87(2)(b) a § 87(2)(b) old black male § 87(2)(b) § 87(2)(b), stated that on August 8th, 2005 at 2:20 AM he had gone to a building near the corner of Patchen Avenue and Fulton Street. He did not remember the exact address of the building. He had gone there to pick up his girlfriend who lives in the building at the location while driving his 1993 beige Nissan Maxima. § 87(2)(b) § 87(2)(b) § 87(2)(b) parked it in front of a fire hydrant and waited in the car for his girlfriend to come down. § 87(2)(b) § 87(2)(b) § 87(2)(b) did not remember if anyone was in front of the building. He did not speak to anyone; he does not know anyone in the building. He was not talking on his cell phone. He was wearing a navy blue tee shirt and navy blue shorts.

§ 87(2)(b) § 87(2)(b) § 87(2)(b) saw a black car § 87(2)(b) § 87(2)(b) § 87(2)(b) stated that the car looked similar to a Crown Victoria or the unmarked taxicabs that operated in the area) drive past him down Patchen Avenue to the corner of Patchen Avenue and Fulton Street. As the officers drove past him, the officers in the car had looked at § 87(2)(b) § 87(2)(b) § 87(2)(b) and he looked back. When the officers reached the corner, they waited for the light to turn green. Once the light was green, the police vehicle made a U-turn and came back up Patchen Avenue, parking right behind § 87(2)(b) § 87(2)(b) § 87(2)(b) Four officers exited the vehicle. The driver of the black sedan, Sergeant Courtien, came to the driver's side of § 87(2)(b) § 87(2)(b) § 87(2)(b) s car and spoke to him, asking him for his license and registration. Officer Bourdon came to the passenger side and watched

§ 87(2) § 87(2)(b) § 87(2)(b) as he interacted with Sergeant Courtien. § 87(2) § 87(2)(b) § 87(2)(b) asked Sergeant Courtien why he was asking for § 87(2) § 87(2)(b) § 87(2)(b) s] information. Sergeant Courtien seemed to get agitated at this question and repeated his request for § 87(2) § 87(2)(b) § 87(2)(b) s identification, this time saying the request rudely and at greater volume. Seeing the officer's agitated state, § 87(2) § 87(2)(b) § 87(2)(b) did not attempt to say anything further to him. He gave Sergeant Courtien his license and registration, after which he asked § 87(2) § 87(2)(b) § 87(2)(b) to step out of the car.

Once § 87(2) § 87(2)(b) § 87(2)(b) stepped out of his car, Officer Granahan and Officer Collora, who until now had stayed to the back of § 87(2) § 87(2)(b) § 87(2)(b) s car, approached § 87(2) § 87(2)(b) § 87(2)(b). Officer Granahan frisked § 87(2) § 87(2)(b) § 87(2)(b) patting him down, feeling about the waist and his shorts pockets. § 87(2) § 87(2)(b) § 87(2)(b) when he was frisked was standing with his arms raised. As Officer Granahan did this, Officer Collora was standing next to § 87(2) § 87(2)(b) § 87(2)(b). He stood there and watched, but did not frisk § 87(2) § 87(2)(b) § 87(2)(b). Sergeant Courtien and Officer Bourdon while this happened searched § 87(2) § 87(2)(b) § 87(2)(b) s car. As § 87(2) § 87(2)(b) § 87(2)(b) was being frisked, he did not see where the officers were searching. But he did see the officers actually enter the car. Both car doors were open as the officers looked inside the car. After Officer Granahan had finished frisking § 87(2) § 87(2)(b) § 87(2)(b) he and Officer Collora took § 87(2) § 87(2)(b) § 87(2)(b) and sat him on his back bumper, facing away from his car so that he could not see what Sergeant Courtien and Officer Bourdon were doing as they searched his car. He was sitting on the back bumper of his car for between three and five minutes before the officers were done with the search. Once the officers finished searching the car, all four officers left the scene. As the officers left, Officer Collora yelled at § 87(2) § 87(2)(b) § 87(2)(b) saying, "Get out of here. Go Home. This is a drug location." The entire interaction lasted about six minutes. As the officers left the location, § 87(2) § 87(2)(b) § 87(2)(b) took out a pad of paper and pen and wrote down notes regarding what happened, including the license plate number of the car the officers were using (encl.6c-h). § 87(2) § 87(2)(b) § 87(2)(b) saw that number as the officers drove away. When giving his statement to the CCRB, § 87(2) § 87(2)(b) § 87(2)(b) provided the plate number, § 87(2)(b). After writing down the necessary information in his notes, he left the location and went home, not wanting to wait for his girlfriend any further. She had not arrived by this time and was not present at all before, during, or after the incident with the officers took place.

On March 23rd, 2006 § 87(2)(b) § 87(2)(b) § 87(2)(b) was shown photo array #1 that displayed five filler photos along with the photo of Sergeant Courtien, which was photo #1. At the time of the array the investigator only possessed a photo of Sergeant Courtien. After viewing the photos, § 87(2) § 87(2)(b) § 87(2)(b) could not identify any of the officers pictured as one of the officers that was involved in his incident. He did mark down that Officer #3 appeared to look like an officer § 87(2) § 87(2)(b) § 87(2)(b) had encountered before, though he did not believe he was one of the officers involved in the incident (encl.7a-b).

Results of Investigation

Officer's Interviewed

Sergeant David Courtien, of the 77th Precinct (Subject Officer)

Sergeant Courtien is a § 87(2)(b) white male with dark brown hair and Hazel eyes, § 87(2)(b)

Sergeant David Courtien stated that on August 5th, 2005 he was working from 11:05 PM to 9:02 AM. He was working with Officers Edgar Bourdon, Joseph Collora, and Matthew Granahan. They were all in plainclothes and using unmarked Crown Victoria, § 87(2)(e), § 87(2)(f), according to a fleet services check, is a black Crown Victoria sedan and has the license plate § 87(2)(b), which corresponds to the plate number and description of the officers' vehicle that § 87(2) § 87(2)(b) § 87(2)(b) provided). Sergeant Courtien did not mention the plate number of the patrol or the color. Sergeant Courtien was the Anti-Crime supervisor. Sergeant Courtien does not have any memo book entries with regards to the incident. His memo book does not have any entries around the time of the incident (encl.8a-b).

Sergeant Courtien does not have any independent recollection of the incident. He does not recall interacting with § 87(2) § 87(2)(b) § 87(2)(b). He does not recall having any conversation with a civilian about the corner of Fulton Street and Patchen Avenue being a drug prone location. He said that the normal area of patrol he

would have covered on the date of incident was from Carlton Avenue to the corner of Atlantic Avenue and Eastern Parkway. Very rarely would Sergeant Courtien cross Fulton Street, usually only in cases where he was following a car. Sergeant Courtien does not remember being near the corner of Fulton Street and Patchen Avenue. Sergeant Courtien does not recall conducting any car stops on the date in question, but he is sure he did. Sergeant Courtien is familiar with Fulton Street, but he is not familiar with Patchen Avenue, as it is not in his command.

Sergeant Courtien described Officer Bourdon as “Spanish” male, with a medium complexion, 5’11-6’0, a medium build, and about 32 years old. Officer Collora is white, about 5’11, heavyset, with dark hair, about 38 years old. Officer Granahan is thin, with brown hair, about 6’0, 26 years old. Sergeant Courtien did not say what race Officer Granahan is (encl.9a-b).

Officer Matthew Granahan, of the 77th Precinct (Subject Officer)

Officer Edgar Bourdon, of the 77th Precinct (Subject Officer)

Officer Joseph Collora, of the 77th Precinct (Witness Officer)

Officer Granahan is a § 87(2)(b) white male, § 87(2)(b) with black hair and green eyes.

Officer Granahan stated that on August 5th, 2005 he was working from 11:15 PM to 7:50 AM. He was in plainclothes and working with Officers Collora, Bourdon, and Sergeant Courtien. They were using unmarked patrol car § 87(2)(b), a black crown victoria. He was assigned to Anti-Crime. Officer Granahan does not have any memo book entries with regards to the incident (encl.11a-b).

Officer Bourdon is a § 87(2)(b) hispanic male with brown hair and brown eyes, § 87(2)(b)

Officer Bourdon stated that on August 5th, 2005 he was working from 11:15 PM to 7:50 AM. He was in plainclothes working with Officers Granahan, Collora, and Sergeant Courtien. He was assigned to Anti Crime and using patrol car § 87(2)(b), which is an unmarked black Crown Victoria. Officer Bourdon does not have any memo book entries in regards to the incident (encl.13a-b).

Officer Collora is a § 87(2)(b) heavyset white male officer with dark brown hair, § 87(2)(b)

Officer Joseph Collora stated that on August 5th, 2005 he was working from 11:15 PM to 7:50 AM. He was in plainclothes working with Officers Bourdon, Granahan, and Sergeant Courtien. They were assigned to Anti-Crime and using patrol car § 87(2)(b), a blue or black unmarked car, which was the executive officer’s car. Officer Collora does not have any memo book entries with regards to the incident (encl.15a-b).

§ 87(2)(g)

None of the officers have any notations in their memo books around the time of the incident. The only notations they have are the start of the tour and the end of tour, with nothing in between.

Police Documents

A check of the 81st Precinct map (the precinct the incident occurred in) and the 77th Precinct map (the officers’ home precinct) shows that the two precincts border one another. They share a common border of Atlantic Avenue for the entire width of the 81st Precinct. In looking closer, the incident location, which is near the corner of Fulton Street and Patchen Avenue, is only two blocks from the border of the 77th and 81st Precincts (encl.Xa-b).

A check of the Booking Arraignment Disposition System for arrests made on August 5th, 2005 showed that there were not any arrests made by any officers near the incident location around the time of the alleged incident (encl.Ya-b).

A fleet services check run by the Monitoring and Analysis Unit found that the police vehicle with plate number § 87(2)(b) is recorded as being a black unmarked Ford Crown Victoria, § 87(2)(b), assigned to the 77th precinct (encl.16).

The roll call for the 77th Precinct for tour 1 on August 5th, 2005 indicated that there were two units that might have been operating out of the 77th Precinct in an unmarked vehicle, the Anti Crime unit supervised by Sergeant Courtien and the Grand Larceny Auto supervised by Sergeant Patrick Kenney. In reviewing the make up of both units, the officers of the GLA unit did not fit the description of the subjects in § 87(2)(b) § 87(2)(b) s complaint because one of the four officers in that unit was female, Officer Katherine Rosero (encl.17a-h).

The 77th Precinct Stop and Frisk Log does not contain any record of § 87(2)(b) § 87(2)(b) § 87(2)(b) being stopped by officers on August 5th, 2005. A Stop and Frisk Report was also not prepared for the stop of § 87(2)(b) § 87(2)(b) (encl.18a-b).

A Management Information System's Division check of whether § 87(2)(b) § 87(2)(b) § 87(2)(b) s name was run through the system from a patrol car or over the radio for warrants yielded negative results. There was no record of such a check being made on August 5th, 2005 (encl.19a-b).

A request for the 77th Precinct Vehicle Utilization Log that was created on August 5th, 2005 yielded negative results, as the investigator received in response to his request a notification that the 77th Precinct does not maintain a Vehicle Utilization Log (encl.23f).

CCRB History

Sergeant Courtien in his twelve years as a NYPD officer has no substantiated complaints (encl.1).

Officer Granahan in his five years as a NYPD officer has one prior substantiated complaint, in case #200409370, for a retaliatory summons. The end disposition of the case was that Officer Granahan received instructions (encl.2).

Officer Bourdon in his twelve years as a NYPD officer has no substantiated complaints (encl.3).

§ 87(2)(b) § 87(2)(b) § 87(2)(b) has never filed a complaint with the CCRB prior to this complaint (encl.4).

Conclusions and Recommendations

Officer Identification

When § 87(2)(b) § 87(2)(b) § 87(2)(b) provided his sworn statement to the CCRB, he could not provide any identifying information for the officers he had dealt with other than the license plate of the car they had been using, which he wrote down in his notes. When that license plate was checked, it came back that the car was being used by the 77th Precinct. When the 77th Precinct Roll Call was checked, it showed that there were two units of four officers that could have been using an unmarked vehicle during the course of their tours, Anti Crime and GLA. When the composition of each unit was checked, it was found that the GLA unit could not have been the subject of the allegations, as one of its four members on duty that night was a female, and § 87(2)(b) § 87(2)(b) § 87(2)(b) had described the subject officers as being four males. The Anti Crime team, however, fit the basic description. Sergeant Courtien was interviewed, and he confirmed that his unit was using RMP § 87(2)(b) on the date of incident. When Officers Collora, Granahan, and Bourdon were interviewed, they similarly confirmed their usage of the vehicle § 87(2)(b) § 87(2)(b) § 87(2)(b) described the subject officers as using. § 87(2)(g)

Agreed Facts and Issues in Dispute

When the officers were interviewed, they did not have any recollection of the incident, so they could not provide any description of it. § 87(2)(g)

Credibility

§ 87(2)(g)

Sergeant Courtien and Officers Bourdon, Granahan, and Collora when interviewed could not recall the incident and were unable to provide any statement in regards to it.

Allegation A) Sergeant David Courtien stopped the car in which § 87(2)(b) was an occupant.

Allegation B) Officer Matthew Granahan frisked § 87(2)(b)

Allegation C) Sergeant David Courtien searched the car in which § 87(2)(b) was an occupant.

Allegation D) Officer Edgar Bourdon searched the car in which § 87(2)(b) was an occupant.

§ 87(2)(g)

It is recommended that Allegations A, B, C, and D be closed as unsubstantiated.

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: